BAP No. 00-0000

UNITED STATES BANKRUPTCY APPELLATE PANEL
FOR THE FIRST CIRCUIT

Example Creditor, Inc.
Appellant,

v.

Sample Debtor, *et al.*
Appellees.

On Appeal from the United States Bankruptcy Court for the District of Example
Bankruptcy Case No. 00-00000

REPLY BRIEF FOR APPELLANT

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11 U.S.C. § 506(a)

ARGUMENT

I. The Answering Brief Concedes the Recording Issue

Appellees do not dispute that the financing statement identified the collateral by type. They argue only that the Debtor's relocation of the equipment ended perfection. That argument has no support in the statute. A relocation within the same jurisdiction does not require a new filing, as *Gamma Trust v. Delta Estate*, 300 F.3d 30, 38 (1st Cir. 2002) explains.

II. The Valuation Question Turns on the Excluded Exhibit

Appellees say the court relied on both witnesses. The order says otherwise: it adopts a figure between the two witnesses' numbers without explaining how it reached that figure. App. at 27. Under 11 U.S.C. § 506(a), the court must value the collateral, and an unexplained midpoint does not permit review.

CONCLUSION

The order should be vacated and the matter remanded for valuation.

Respectfully submitted,
February 15, 2030

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STATEMENT REGARDING RELATED CASES

1st Cir. BAP L.R. 8014-1(a)(2)

☐ The undersigned certifies that the following are known related cases and appeals:

☒ The undersigned certifies that the undersigned knows of no related cases or appeals as that term is defined in 1st Cir. BAP L.R. 8014-1(a)(2)(A).

CERTIFICATE OF COMPLIANCE

This brief complies with the type-volume limitation of Fed. R. Bankr. P. 8015(a)(7)(B) because it contains 136 words, excluding the parts of the brief exempted under Fed. R. Bankr. P. 8015(g).

This brief complies with the typeface and type-style requirements of Fed. R. Bankr. P. 8015(a)(5) and (6) because it has been prepared in a proportionally spaced typeface, EB Garamond 14-point, using the vendored font.

s/ JANE A. EXAMPLE
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Dated: February 15, 2030